

Spanish Prisoners of War (from Literature and Life)

William Dean Howells

Project Gutenberg

Spanish Prisoners of War (from Literature and Life)

William Dean Howells

Project Gutenberg

The Project Gutenberg eBook of Spanish Prisoners of War (from Literature and Life)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Spanish Prisoners of War (from Literature and Life)

Author: William Dean Howells

Release date: October 22, 2004 [eBook #3383]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/3383

Credits: HTML file produced by Jose Menendez; Text file by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK SPANISH
PRISONERS OF WAR (FROM LITERATURE AND LIFE) ***

LITERATURE AND LIFE

SPANISH PRISONERS OF WAR

BY

WILLIAM DEAN HOWELLS

CERTAIN summers ago our cruisers, the *St. Louis* and the *Harvard*, arrived at Portsmouth, New Hampshire, with sixteen or seventeen hundred Spanish prisoners from Santiago de Cuba. They were partly soldiers of the land forces picked up by our troops in the fights before the city, but by far the greater part were sailors and marines from Cervera's ill-fated fleet. I have not much stomach for war, but the poetry of the fact I have stated made a very potent appeal to me on my literary side, and I did not hold out against it longer than to let the *St. Louis* get away with Cervera to Annapolis, when only her less dignified captives remained with those of the *Harvard* to feed either the vainglory or the pensive curiosity of the spectator. Then I went over from our summer colony to Kittery Point, and got a boat, and sailed out to have a look at these subordinate enemies in the first hours of their imprisonment.

I.

It was an afternoon of the brilliancy known only to an afternoon of the American summer, and the water of the swift Piscataqua River glittered in the sun with a really incomparable brilliancy. But nothing could light up the great monster of a ship, painted the dismal lead-color which our White Squadrons put on with the outbreak of the war, and she lay sullen in the stream with a look of ponderous repose, to which the activities of the coaling-barges at her side, and of the sailors washing her decks, seemed quite unrelated. A long gun forward and a long gun aft threatened the fleet of launches, tugs, dories, and cat-boats which fluttered about her, but the *Harvard* looked tired and bored, and seemed as if asleep. She had, in fact, finished her mission. The captives whom death had released had been

carried out and sunk in the sea; those who survived to a further imprisonment had all been taken to the pretty island a mile farther up in the river, where the tide rushes back and forth through the Narrows like a torrent. Its defiant rapidity has won it there the graphic name of Pull-and-be-Damned; and we could only hope to reach the island by a series of skilful tacks, which should humor both the wind and the tide, both dead against us. Our boatman, one of those shore New Englanders who are born with a knowledge of sailing, was easily master of the art of this, but it took time, and gave me more than the leisure I wanted for trying to see the shore with the strange eyes of the captives who had just looked upon it. It was beautiful, I had to own, even in my quality of exile and prisoner. The meadows and the orchards came down to the water, or, where the wandering line of the land was broken and lifted in black fronts of rock, they crept to the edge of the cliff and peered over it. A summer hotel stretched its verandas along a lovely level; everywhere in clovery hollows and on breezy knolls were gray old farm-houses and summer cottages—like weather-beaten birds' nests, and like freshly painted marten-boxes; but all of a cold New England neatness which made me homesick for my malodorous Spanish fishing-village, shambling down in stony lanes to the warm tides of my native seas. Here, every place looked as if it had been newly scrubbed with soap and water, and rubbed down with a coarse towel, and was of an antipathetic alertness. The sweet, keen breeze made me shiver, and the northern sky, from which my blinding southern sun was blazing, was as hard as sapphire. I tried to bewilder myself in the ignorance of a Catalonian or Asturian fisherman, and to wonder with his darkened mind why it should all or any of it have been, and why I should have escaped from the iron hell in which I had fought no quarrel of my own to fall into the hands of strangers, and to be haled over seas to these alien shores for a captivity of unknown term. But I need not have been at so much pains; the intelligence (I do not wish to boast) of an American author would have sufficed; for if there is anything more grotesque than another in war it is its monstrous inconsequence. If we had a grief with the Spanish government, and if it was so mortal we must do murder for it, we might have sent a joint committee of the House and Senate, and, with the improved means of assassination which modern science has put at our command, killed off the Spanish cabinet, and even the queen-mother and the little king. This would have been consequent, logical, and in a sort

reasonable; but to butcher and capture a lot of wretched Spanish peasants and fishermen, hapless conscripts to whom personally and nationally we were as so many men in the moon, was that melancholy and humiliating necessity of war which makes it homicide in which there is not even the saving grace of hate, or the excuse of hot blood.

I was able to console myself perhaps a little better for the captivity of the Spaniards than if I had really been one of them, as we drew nearer and nearer their prison isle, and it opened its knotty points and little ravines, overrun with sweet-fern, blueberry-bushes, bay, and low blackberry-vines, and rigidly traversed with a high stockade of yellow pine boards. Six or eight long, low, wooden barracks stretched side by side across the general slope, with the captive officers' quarters, sheathed in weather-proof black paper, at one end of them. About their doors swarmed the common prisoners, spilling out over the steps and on the grass, where some of them lounged smoking. One operatic figure in a long blanket stalked athwart an open space; but there was such poverty of drama in the spectacle at the distance we were keeping that we were glad of so much as a shirt-sleeved contractor driving out of the stockade in his buggy. On the heights overlooking the enclosure Gatling guns were posted at three or four points, and every thirty or forty feet sentries met and parted, so indifferent to us, apparently, that we wondered if we might get nearer. We ventured, but at a certain moment a sentry called to us, "Fifty yards off, please!" Our young skipper answered, "All right," and as the sentry had a gun on his shoulder which we had every reason to believe was loaded, it was easily our pleasure to retreat to the specified limit. In fact, we came away altogether, after that, so little promise was there of our being able to satisfy our curiosity further. We came away carefully nursing such impression as we had got of a spectacle whose historical quality we did our poor best to feel. It related us, after solicitation, to the wars against the Moors, against the Mexicans and Peruvians, against the Dutch; to the Italian campaigns of the Gran Capitan, to the Siege of Florence, to the Sack of Rome, to the wars of the Spanish Succession, and what others. I do not deny that there was a certain aesthetic joy in having the Spanish prisoners there for this effect; we came away duly grateful for what we had seen of them; and we had long duly resigned ourselves to seeing no more, when word was sent to us that our young skipper had got a permit to visit the island, and wished us to go with him.

II.

It was just such another afternoon when we went again, but this time we took the joyous trolley-car, and bounded and pirouetted along as far as the navy-yard of Kittery, and there we dismounted and walked among the vast, ghostly ship-sheds, so long empty of ships. The grass grew in the Kittery navy-yard, but it was all the pleasanter for the grass, and those pale, silent sheds were far more impressive in their silence than they would have been if resonant with saw and hammer. At several points, an unarmed marine left his leisure somewhere, and lunged across our path with a mute appeal for our permit; but we were nowhere delayed till we came to the office where it had to be countersigned, and after that we had presently crossed a bridge, by shady, rustic ways, and were on the prison island. Here, if possible, the sense of something pastoral deepened; a man driving a file of cows passed before us under kindly trees, and the bell which the foremost of these milky mothers wore about her silken throat sent forth its clear, tender note as if from the depth of some grassy bosk, and instantly witched me away to the woods-pastures which my boyhood knew in southern Ohio. Even when we got to what seemed fortifications they turned out to be the walls of an old reservoir, and bore on their gate a paternal warning that children unaccompanied by adults were not allowed within.

We mounted some stone steps over this portal and were met by a young marine, who left his Gatling gun for a moment to ask for our permit, and then went back satisfied. Then we found ourselves in the presence of a sentry with a rifle on his shoulder, who was rather more exacting. Still, he only wished to be convinced, and when he had pointed out the headquarters where we were next to go, he let us over his beat. At the headquarters there was another sentry, equally serious, but equally civil, and with the intervention of an orderly our leader saw the officer of the day. He came out of the quarters looking rather blank, for he had learned that his pass admitted our party to the lines, but not to the stockade, which we might approach, at a certain point of vantage and look over into, but not penetrate. We resigned ourselves, as we must, and made what we could of the nearest prison barrack, whose door overflowed and whose windows swarmed with

swarthy captives. Here they were, at such close quarters that their black, eager eyes easily pierced the pockets full of cigarettes which we had brought for them. They looked mostly very young, and there was one smiling rogue at the first window who was obviously prepared to catch anything thrown to him. He caught, in fact, the first box of cigarettes shied over the stockade; the next box flew open, and spilled its precious contents outside the dead-line under the window, where I hope some compassionate guard gathered them up and gave them to the captives.

Our fellows looked capable of any kindness to their wards short of letting them go. They were a most friendly company, with an effect of picnicking there among the sweet-fern and blueberries, where they had pitched their wooden tents with as little disturbance to the shrubbery as possible. They were very polite to us, and when, after that misadventure with the cigarettes (I had put our young leader up to throwing the box, merely supplying the *corpus delicti* myself), I wandered vaguely towards a Gatling gun planted on an earthen platform where the laurel and the dogroses had been cut away for it, the man in charge explained with a smile of apology that I must not pass a certain path I had already crossed.

One always accepts the apologies of a man with a Gatling gun to back them, and I retreated. That seemed the end; and we were going crestfallenly away when the officer of the day came out and allowed us to make his acquaintance. He permitted us, with laughing reluctance, to learn that he had been in the fight at Santiago, and had come with the prisoners, and he was most obligingly sorry that our permit did not let us into the stockade. I said I had some cigarettes for the prisoners, and I supposed I might send them in, but he said he could not allow this, for they had money to buy tobacco; and he answered another of our party, who had not a soul above buttons, and who asked if she could get one from the Spaniards, that so far from promoting her wish, he would have been obliged to take away any buttons she might have got from them.

“The fact is,” he explained, “you’ve come to the wrong end for transactions in buttons and tobacco.”

But perhaps innocence so great as ours had wrought upon him. When we said we were going, and thanked him for his unavailing good-will, he looked at his watch and said they were just going to feed the prisoners; and after some parley he suddenly called out, “Music of the guard!” Instead of a

regimental band, which I had supposed summoned, a single corporal ran out the barracks, touching his cap.

“Take this party round to the gate,” the officer said, and he promised us that he would see us there, and hoped we would not mind a rough walk. We could have answered that to see his prisoners fed we would wade through fathoms of red-tape; but in fact we were arrested at the last point by nothing worse than the barbed wire which fortified the outer gate. Here two marines were willing to tell us how well the prisoners lived, while we stared into the stockade through an inner gate of plank which was run back for us. They said the Spaniards had a breakfast of coffee, and hash or stew and potatoes, and a dinner of soup and roast; and now at five o’clock they were to have bread and coffee, which indeed we saw the white-capped, white-jacketed cooks bringing out in huge tin wash-boilers. Our marines were of opinion, and no doubt rightly, that these poor Spaniards had never known in their lives before what it was to have full stomachs. But the marines said they never acknowledged it, and the one who had a German accent intimated that gratitude was not a virtue of any Roman (I suppose he meant Latin) people. But I do not know that if I were a prisoner, for no fault of my own, I should be very explicitly thankful for being unusually well fed. I thought (or I think now) that a fig or a bunch of grapes would have been more acceptable to me under my own vine and fig-tree than the stew and roast of captors who were indeed showing themselves less my enemies than my own government, but were still not quite my hosts.

III.

How is it the great pieces of good luck fall to us? The clock strikes twelve as it strikes two, and with no more premonition. As we stood there expecting nothing better of it than three at the most, it suddenly struck twelve. Our officer appeared at the inner gate and bade our marines slide away the gate of barbed wire and let us into the enclosure, where he welcomed us to seats on the grass against the stockade, with many polite regrets that the tough little knots of earth beside it were not chairs.

The prisoners were already filing out of their quarters, at a rapid trot towards the benches where those great wash-boilers of coffee were set. Each man had a soup-plate and bowl of enamelled tin, and each in his turn received quarter of a loaf of fresh bread and a big ladleful of steaming coffee, which he made off with to his place at one of the long tables under a shed at the side of the stockade. One young fellow tried to get a place not his own in the shade, and our officer when he came back explained that he was a *guerrillero*, and rather unruly. We heard that eight of the prisoners were in irons, by sentence of their own officers, for misconduct, but all save this *guerrillero* here were docile and obedient enough, and seemed only too glad to get peacefully at their bread and coffee.

First among them came the men of the *Cristobal Colon*, and these were the best looking of all the captives. From their pretty fair average the others varied to worse and worse, till a very scrub lot, said to be ex-convicts, brought up the rear. They were nearly all little fellows, and very dark, though here and there a six-footer towered up, or a blond showed among them. They were joking and laughing together, harmlessly enough, but I must own that they looked a crew of rather sorry jail-birds; though whether any run of humanity clad in misfits of our navy blue and white, and other chance garments, with close-shaven heads, and sometimes bare feet, would have looked much less like jail-birds I am not sure. Still, they were not prepossessing, and though some of them were pathetically young, they had none of the charm of boyhood. No doubt they did not do themselves justice, and to be herded there like cattle did not improve their chances of making a favorable impression on the observer. They were kindly used by our officer and his subordinates, who mixed among them, and straightened out the confusion they got into at times, and perhaps sometimes wilfully. Their guards employed a few handy words of Spanish with them; where these did not avail, they took them by the arm and directed them; but I did not hear a harsh tone, and I saw no violence, or even so much indignity offered them as the ordinary trolley-car passenger is subjected to in Broadway. At a certain bugle-call they dispersed, when they had finished their bread and coffee, and scattered about over the grass, or returned to their barracks. We were told that these children of the sun dreaded its heat, and kept out of it whenever they could, even in its decline; but they seemed not so much to withdraw and hide themselves from that, as to vanish into the history of "old, unhappy, far-off" times, where prisoners of war,

properly belong. I roused myself with a start as if I had lost them in the past.

Our officer came towards us and said gayly, "Well, you have seen the animals fed," and let us take our grateful leave. I think we were rather a loss, in our going, to the marines, who seemed glad of a chance to talk. I am sure we were a loss to the man on guard at the inner gate, who walked his beat with reluctance when it took him from us, and eagerly when it brought him back. Then he delayed for a rapid and comprehensive exchange of opinions and ideas, successfully blending military subordination with American equality in his manner.

The whole thing was very American in the perfect decorum and the utter absence of ceremony. Those good fellows were in the clothes they wore through the fights at Santiago, and they could not have put on much splendor if they had wished, but apparently they did not wish. They were simple, straightforward, and adequate. There was some dry joking about the superiority of the prisoners' rations and lodgings, and our officer ironically professed his intention of messing with the Spanish officers. But there was no grudge, and not a shadow of ill will, or of that stupid and atrocious hate towards the public enemy which abominable newspapers and politicians had tried to breed in the popular mind. There was nothing manifest but a sort of cheerful purpose to live up to that military ideal of duty which is so much nobler than the civil ideal of self-interest. Perhaps duty will yet become the civil ideal, when the peoples shall have learned to live for the common good, and are united for the operation of the industries as they now are for the hostilities.

IV.

Shall I say that a sense of something domestic, something homelike, imparted itself from what I had seen? Or was this more properly an effect from our visit, on the way back to the hospital, where a hundred and fifty of the prisoners lay sick of wounds and fevers? I cannot say that a humaner spirit prevailed here than in the camp; it was only a more positive humanity

which was at work. Most of the sufferers were stretched on the clean cots of two long, airy, wooden shells, which received them, four days after the orders for their reception had come, with every equipment for their comfort. At five o'clock, when we passed down the aisles between their beds, many of them had a gay, nonchalant effect of having toothpicks or cigarettes in their mouths; but it was really the thermometers with which the nurses were taking their temperature. It suggested a possibility to me, however, and I asked if they were allowed to smoke, and being answered that they did smoke, anyway, whenever they could, I got rid at last of those boxes of cigarettes which had been burning my pockets, as it were, all afternoon. I gave them to such as I was told were the most deserving among the sick captives, but Heaven knows I would as willingly have given them to the least. They took my largesse gravely, as became Spaniards; one said, smiling sadly, "Muchas gracias," but the others merely smiled sadly; and I looked in vain for the response which would have twinkled up in the faces of even moribund Italians at our looks of pity. Italians would have met our sympathy halfway; but these poor fellows were of another tradition, and in fact not all the Latin peoples are the same, though we sometimes conveniently group them together for our detestation. Perhaps there are even personal distinctions among their several nationalities, and there are some Spaniards who are as true and kind as some Americans. When we remember Cortez let us not forget Las Casas.

They lay in their beds there, these little Spanish men, whose dark faces their sickness could not blanch to more than a sickly sallow, and as they turned their dull black eyes upon us I must own that I could not "support the government" so fiercely as I might have done elsewhere. But the truth is, I was demoralized by the looks of these poor little men, who, in spite of their character of public enemies, did look so much like somebody's brothers, and even somebody's children. I may have been infected by the air of compassion, of scientific compassion, which prevailed in the place. There it was as wholly business to be kind and to cure as in another branch of the service it was business to be cruel and to kill. How droll these things are! The surgeons had their favorites among the patients, to all of whom they were equally devoted; inarticulate friendships had sprung up between them and certain of their hapless foes, whom they spoke of as "a sort of pets." One of these was very useful in making the mutinous take their medicine; another was liked apparently because he was so likable. At a certain cot the

chief surgeon stopped and said, “We did not expect this boy to live through the night.” He took the boy’s wrist between his thumb and finger, and asked tenderly as he leaned over him, “Poco mejor?” The boy could not speak to say that he was a little better; he tried to smile—such things do move the witness; nor does the sight of a man whose bandaged cheek has been half chopped away by a machete tend to restore one’s composure.

*** END OF THE PROJECT GUTENBERG EBOOK SPANISH
PRISONERS OF WAR (FROM LITERATURE AND LIFE) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.